

#	Case Name	Tentative
	2024-01374564	fees and costs. The statute expressly defines “defendant” to include “cross-defendant” and “complaint” to include “cross-complaint,” meaning cross-defendants are fully within the statute's fee-shifting framework. Here, it is undisputed that Fernandez prevailed on only one of the two causes of action attacked in the cross-complaint. That fact does not strip Fernandez of the right to statutory attorney fees. A cross-defendant need not succeed in striking every challenged cause of action to be considered a prevailing party under section 425.16. (<i>Mann v. Quality Old Time Service, Inc.</i>, (2006) 139 Cal.App.4th 328.) The relevant inquiry is whether the defendant obtained a practical benefit from the motion. (<i>City of Colton v. Singletary</i> (2012) 206 Cal.App.4th 751.) Here, Fernandez was successful in knocking out the claim for abuse of process. That is not insignificant. The fact Fernandez prevailed on the abuse of process claim had the “practical benefit” of “narrowing the litigation, thus impacting discovery, motion practice, and trial preparation.” (<i>Maleti v. Wickers</i> (2022) 82 Cal.App.5th 181, 232–233, <i>as modified on denial of reh'g</i> (Sept. 9, 2022).) When a defendant partially succeeds on an anti-SLAPP motion but the work on successful and unsuccessful causes of action was overlapping, the court should first determine the lodestar amount for hours expended on the successful claims, and then consider the defendant's relative success in achieving their objective—but if the claims are truly intertwined, no apportionment is required at all. (<i>Mann v. Quality Old Time Service, Inc.</i> (2006) 139 Cal.App.4th 328.) For example, in <i>Cruz v. Fusion Buffet, Inc.</i> (2020) 57 Cal.App.5th 221, the court found no abuse of discretion in declining to apportion fees where meal and rest break claims were inextricably intertwined with other wage and hour claims. The burden remains on the fee applicant to demonstrate that the claims share a common core of facts or are otherwise intertwined such that apportionment is impractical. (<i>Harman v. City and County of San Francisco</i> (2007) 158 Cal.App.4th 407.) Here, Fernandez was given the opportunity to meet her burden showing <i>how</i> the claims of abuse of process and unfair business practices share a common core of facts or were so intertwined that apportionment is impractical. But Fernandez only concludes that they are without further explanation. That’s not sufficient for Fernandez to carry the burden of proof.

#	Case Name	Tentative
		Therefore, the court must apportion the requested fees. When apportionment is required, block billing makes it difficult or impossible for courts to determine how much time was spent on particular activities. (<i>In re Marriage of Nassimi</i> (2016) 3 Cal.App.5th 667, 695-696.) If counsel cannot define billing entries so as to meaningfully enlighten the court of those related to the compensable claim, the trial court may exercise its discretion in assigning a reasonable percentage to the entries or simply cast them aside. (Id.) Similarly, in <i>569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 441, the court affirmed a downward adjustment where many billings involved vague or block-billed entries, making it impossible to determine which hours were reasonably necessary for the successful anti-SLAPP motion versus other claims. With this framework in mind, the court turns to Fernandez's request. The court notes that Fernandez claims \$4,650.00 for 3 hours @ \$550 per hour for preparation of the instant motion. (See motion, page 5, line 23, ROA #588.) This appears to be a miscalculation. 3 hours @ \$550 per hour totals \$1,650.00, not \$4,650.00 (\$3,000 difference) Therefore, the requested \$16,057.96 should be reduced by \$3,000.00 to reflect the miscalculation. Further, Defoort is correct that Fernandez's claim that all requested hours relate to the successful motion does not withstand scrutiny. The \$1,833.33 for the time allocated on November 14 for work regarding restitution/d disgorgement does not relate to the successful motion. The remaining entries are too vague for the court to perform a more detailed analysis to confirm or refute whether the hours claimed relate to the successful motion; these entries are blockbilled as related to the SLAPP motion. Therefore, the court reduces the remaining claimed amount by 60% to reflect the court's apportionment of the hours spent on the successful motion. In short, the requested \$16,957.96 is reduced by \$3000, then further reduced by \$1833.33. The court then subtracts out the \$71.51 in fees/costs. The total for the loadstar is \$12,053.12. This number is then reduced by 60% (\$7,231.87) to bring the total of fees awarded to \$4,821.25, plus \$71.51 in costs for a total award of \$4892.76. As for Defoort's argument that unclean hands should bar Fernandez's award, an award of fees to a party prevailing on a

#	Case Name	Tentative
		SLAPP motion is entitled to an award of fees. This award is mandatory. <i>Frym v. 601 Main Street LLC</i> (2022) 82 Cal.App.5th 613. The word “shall” in the statute leaves no room for the court to exercise equitable discretion to deny the fee award altogether based on the conduct of the prevailing defendant. Ca. Civ. Pro. Section 425.16. Fernandez shall give notice of this ruling.
57.	Bales v. Belenardo 2021-01201005	Plaintiffs Dean Bales and Laura Bales’s motion to strike or tax costs of defendants John and Susan Belenardo is GRANTED in its entirety. The Bales are determined to be the “prevailing parties” for purposes of an award of costs under Ca Civ. Pro. § 1032(b). Defendants are not entitled to costs. Defendants John and Susan Belenardo’s motion to strike or tax costs is GRANTED in part. Ca Civ. Pro. § 1032(b) provides that a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. The statute defines prevailing party at § 1032(a)(4) to include the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. This provision also states that if any party recovers other than monetary relief and in situations other than as specified, the prevailing party shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides. With regard to cost awards under the general Code of Civil Procedure prevailing party framework, there is a single prevailing party. <i>Sharif v. Mehusa, Inc.</i> (2015) 241 Cal.App.4th 185. This means that even where each side achieves success on different claims or phases, the court must ultimately identify one party as the overall victor — or determine that neither party prevailed — rather than splitting the designation between both sides. Here there is no dispute that the Belenardos prevailed on some issues in Phase I of the trial. There is also no dispute that Dean Bales prevailed against Susan Belenardo in Phase II of the trial.